

The Army Contracting Command - Detroit Arsenal (ACC-DTA) enters into Master Agreement for the Repair and Alteration of Vessels (hereinafter "MVA") with prospective contractors who desire ship repair work and who possess the organization and facilities to perform the work satisfactorily.

The MVA will be issued in accordance with Department of Defense Federal Acquisition Regulation Supplement (DFARS), Subpart 217.71, which defines the MVA as "... a written instrument of understanding, negotiated between a contracting activity and a contractor that - (A) contains contract clauses, terms, and conditions applying to future contracts for repairs, alterations, and/or additions to vessels; and (B) contemplates separate future contracts that will incorporate by reference or attachment the required and applicable clauses agreed upon in the master agreement." Pursuant to DFARS 217.7101(a)(2), the MVA is not a contract.

In order to qualify for a MVA, a contractor must have the organizational ability to complete all work required under the contract. As part of the MVA application a prospective contractor must include a statement of the types of work it proposes to perform, and the work its subcontractor will perform.

In order to pursue a MVA you should submit evidence of eligibility as required by Enclosure 1. This information should be in sufficient detail to demonstrate the firm meets all the prescribed eligibility requirements. MVA packages shall be submitted electronically through email or via DoD Safe Access File Exchange, <https://safe.apps.mil/> and directed to Contract Specialists, Chris Murphy and Brandon LaBonty email address: usarmy.detroit.acc.mbx.dta-watercraft@army.mil.

The Government will review the MVA application and a decision to approve or disapprove it will be based on available information. If deemed appropriate, an on-site eligibility survey of the contractor facilities will be performed. Upon approval of an application, ACC-DTA will issue a MVA to the approved contractor.

Upon disapproval of a MVA application, ACC-DTA will issue a letter stating the reasons for the disapproval. This letter will not advise the contractor how to gain approval, but will annotate the respective areas resulting in the disapproval.

All active MVAs will be revalidated annually to ensure that each firm has maintained the organization and facilities, which warrant retention of its MVA.

If you have any questions concerning the MVA or require additional information, please contact the Contract Specialists via email at usarmy.detroit.acc.mbx.dta-watercraft@army.mil.

Enclosure 1

MASTER AGREEMENT FOR REPAIR AND ALTERATION OF VESSELS

Eligibility Requirements

In order to qualify for a Master Agreement for Repair and Alteration of Vessels referred to herein as a "MVA," a contractor must have the organizational ability to complete all work required under the contract. The contractor must include a statement depicting the types of work their firm proposes to perform versus the types of work that will be completed by their subcontractors. Also, the contractor must include a list of previous commercial or Government jobs the contractor has performed which are similar to the work desired; on Government work indicate agency, contract number, type of work involved and magnitude of job. The Government has the right to request an on-site visit to validate MVA submission.

Contractors that have an approved MVA package from another Government Agency (Navy, Coast Guard, etc.) can submit the previously approved package.

The North American Industry Classification System (NAICS), which replaces the Standard Industrial Classification (SIC) Manual, lists codes "for use in the classification of establishments by type of activity....Each establishment is...classified according to its primary activity."

Prospective MVA contractors must provide sufficient documentation to Army Contracting Command – Detroit Arsenal (ACC-DTA) to indicate they meet the general criteria of NAICS Code 336611. The contractor shall submit their qualifying documentation on or before the closing date of the solicitation. The contractor shall submit their qualifying documentation electronically through a contractors email network or via DoD Safe Access File Exchange, <https://safe.apps.mil/>, and directed to Contract Specialists, Chris Murphy and Brandon LaBonty, email address: usarmy.detroit.acc.mbx.dta-watercraft@army.mil.

Documentation may include the contractor's listing, including NAICS Code 336611, in the latest editions of Standard and Poor's Register of Corporations, Dunn and Bradstreet Reference Book, or any similar publication.

"336611 Ship Building and Repairing"

Establishments primarily engaged in building and repairing ships, barges, and lighters, whether self-propelled or towed by other craft. This industry also includes the conversion and alteration of ships...."

In addition to meeting the general criteria of NAICS Code 336611, a MVA contractor must show it possesses the following capabilities:

1. Administrative and Management Control. The contractor shall submit statements or charts establishing its administration. This material must include a list of company officers, principal stockholders, partners or other owners of the firm.

2. Submit an organizational chart establishing clear lines of authority with an explanation of each position shown fully describing the duties, responsibilities, authority and names of the individuals filling the positions.
3. Financial Control. The contractor shall successfully complete a financial capability evaluation, conducted by the Defense Contract Management Agency (DCMA). The financial capability evaluation includes the following: segregation of accounting costs, favorable cash flow-ratios, availability of a line of credit or other source of financial income to support the work effort and prompt payment of subcontractors and suppliers.
4. Production Technical Support. Submit a description of in-house or subcontracted engineering and design support capability. Include capability to access, diagnose and evaluate technical problems and issues and to make competent technical recommendations to the Army when necessary and appropriate.
5. Material Procurement/Control. Submit a description of property control system for receiving, handling and disposing of purchased materials. Include a description of facilities available for storage and safekeeping of material.
6. Subcontractor Management Capabilities. If relying on subcontractors, submit evidence of ability to exercise supervision over subcontractor performance and costs. This is required in order to prove your company's ability to effectively manage and supervise subcontractor performance, costs, and schedule.
7. Quality Control and Quality Assurance. Submit description of firm's inspection and quality assurance organization and written inspection procedures to control, monitor and implement the system (in accordance with ISO 9001 or comparable system). Submit evidence of calibration and metrology system availability.
8. Safety and Security. Submit Fire Protection Plan, Security Plan, and Heavy Weather Plan. Submit evidence of ability to obtain workmen's compensation and employers' liability insurance in the amount of \$100,000 (minimum) and comprehensive general liability insurance in the amount of \$500,000 per occurrence (minimum bodily injury limit).
9. Corrosion Prevention and Control Plan. Submit a Corrosion Prevention and Control Plan to describe the contractor's approach to implementing the corrosion control plan that meets the standards set forth in Association for Materials Protection and Performance (AMPP) for methods and standards of coating removal, surface preparation, surface cleanliness, coating application, quality control and testing. This corrosion prevention and control plan shall address Engine Room/Bow Thruster Compartment; Steering Gear Compartment; Sludge/Dirty Oil/AFFF/Sewage tanks; Protection, Performance, Test and Inspection Process.
10. Hazardous Material and Waste Control. Submit description of procedures and facilities to meet the legal requirements for removal, storage and disposal of hazardous waste; documentation of licensed subcontractors responsible for control of hazardous waste removal, storage and disposal, and appropriate state and Federal agency issued hazardous waste generator number.

11. Facilities. Submit description of dockside facilities, include current plot of facility-copy of lease agreement or statement of ownership; and describe the location, length of pier, water depth, firefighting capabilities, temporary services and other pertinent data. Submit evidence of capability to lift/haul vessels from the water utilizing marine railway, graving dock, marine travel lift, synchro lift, and floating dry-dock. Submit description of shop capabilities in structural (including steel and aluminum), machine, pipe and/or electrical/electronics. Submit a list of plant equipment (type, size and capacity) including major machine tools and equipment and material handling equipment.

12. Current certification of dry-dock. The contractor shall ensure the dry-dock is certified safe for dry-docking U.S. Army vessels in accordance with MIL-STD-1625D(SH) or certified by a registered professional engineer as being capable of safely docking the vessel.

13. Certification by a registered professional engineer shall include the following: (1) Date of the inspection; (2) principal dimensions; (3) capacity; (4) a statement that the professional engineer observed the operation of the mechanical/electrical systems and that the systems are satisfactory to lift the vessel; (5) a statement that the professional engineer visually inspected the structure and verifies the wastage that currently exists is less than 25% or, if wastage is more than 25% in certain areas, thickness readings for those areas and an analysis (preferably a Finite Element Analysis) to indicate what the structure can support in its current condition.

NOTE: Issuance of a MVA does not indicate approval of the contractor's facility for any particular acquisition and is not an affirmative determination of responsibility under FAR subpart 9.1 for any particular acquisition.